SERVICE AND VALIDITY CHECKLIST

Form 3A Notice

> ℹ️ **Important**
>
> Landlord Heaven provides document generation and general information only. We are not a law firm and do not provide legal advice. Court outcomes depend on your evidence, service, and the facts of the case.

Purpose: Use this checklist to verify your Form 3A notice was served correctly and meets the post-1 May 2026 England validity rules. Keep this checklist with your evidence file.

1 Notice Details

Landlord:	Daniel Mercer
Landlord Address:	27 Rowan Avenue Leeds LS8 2PF
Tenant:	Ivy Carleton
Property Address:	16 Willow Mews York YO24 3HX
Tenancy Start Date:	1 January 2024
Notice Service Date:	5 April 2026
Earliest Possession Date:	
Grounds:	Ground 8 – Serious rent arrears (8 weeks/2 months), Ground 10 – Rent arrears (some arrears)

❷ Service Evidence Checklist

Evidence of Service

Confirm you have collected and retained the following evidence of service:

- ☐ Original signed Form 3A notice
- ☐ Copy of the notice served to tenant
- ☐ Date and time of service recorded
- ☐ Method of service documented (hand delivery / first class post / recorded delivery)
- ☐ Proof of service:
  - If hand delivered: Photo of letterbox with notice visible, witness statement
  - If posted: Proof of postage receipt from Royal Mail
  - If recorded delivery: Tracking number and delivery confirmation
- ☐ Witness details recorded (name, address, signature) if applicable
- ☐ Any correspondence from tenant acknowledging receipt

> ⚠ **Keep All Evidence**
>
> You must prove service in court. Without clear evidence, your claim may be dismissed even if the notice is otherwise valid.

3 Validity Requirements

Notice Validity (Housing Act 1988 section 8 / Form 3A)

Verify your notice meets these validity requirements:

- [ ] Notice uses the correct official form (Form 3A)
- [ ] All mandatory fields completed (landlord name/address, tenant name, property address)
- [ ] Ground(s) for possession clearly stated with particulars
- [ ] Section 16E duties checked: no sham fixed term, no notice to quit or oral termination, no purported notice, and each ground relied on is genuinely available on the facts
- [ ] Where a prior-notice ground is used, confirm the written statement under section 16D identified that ground before the tenancy started or within the statutory 28-day window where applicable
- [ ] Notice period is sufficient for the grounds claimed:
  - **4 months minimum:** Grounds such as 1, 1A, 2, 2ZA to 2ZD, 4A, 6 and 6B
  - **2 months minimum:** Grounds such as 5, 5A, 5B, 5C, 5H, 7 and 9
  - **4 weeks minimum:** Grounds 5E, 5F, 5G, 8, 10 and 11
  - **2 weeks minimum:** Grounds 7B, 12, 13, 14A, 14ZA, 15 and 17
  - **Immediate application route:** Grounds 7A and 14 allow immediate application, but the notice still needs to be completed and served properly
  - **Mixed grounds:** Use the longest statutory notice period among all grounds claimed
- [ ] Periodic tenancy: Earliest court date is the day after the statutory notice period expires, counted from the date of service
- [ ] Breathing space checked: if the tenant is in a Debt Respite Scheme breathing space you must not serve or progress rent-arrears grounds without court permission
- [ ] Notice signed and dated by landlord or landlord's agent
- [ ] Mandatory ground claimed: If the ground is fully proven at the hearing, the court must generally grant possession. Note: Some mandatory grounds (e.g., Grounds 1-7) require prior written notice to the tenant before/at the start of the tenancy.

4 After Service

Post-Service Actions

- [ ] Wait until possession date has passed:
- [ ] Do not change locks or remove tenant belongings (illegal eviction)
- [ ] Do not harass tenant or cut off utilities
- [ ] If tenant remains after possession date, apply to court using Form N5 (standard possession claim)
- [ ] Keep proof of service readily accessible for court